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Case Number: 25STCV37410 Hearing Date: September 16, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Leave to

File Second Amended Complaint.

The Motion for Leave to File Second Amended Complaint is granted.

BACKGROUND

Plaintiff Atong Aba (Plaintiff) filed this action against Prosper Services LLC dba Myplace Health (Defendant), alleging that Defendant subjected her to discrimination, harassment, and retaliation during her employment as a personal care attendant and that she was constructively discharged.

On May 28, 2026, the Court sustained Defendant's demurrer to the original Complaint with leave to amend as to the First, Third, Fourth, Fifth, Sixth, and Seventh Causes of Action, overruled the demurrer as to the Second Cause of Action, and granted Defendant's motion to strike the request for punitive damages with leave to amend. Plaintiff filed the FAC on June 29, 2026, adding five causes of action the original Complaint did not contain.

The causes of action in the First Amended Complaint (FAC) are: (1) Disability Discrimination; (2) Retaliation; (3) Failure to Promote; (4) Hostile Work Environment / Harassment; (5) Race Discrimination; (6) Failure to Prevent Discrimination and Harassment; (7) Failure to Accommodate; (8) Failure to Engage in the Interactive Process; (9) Negligent Supervision / Negligent Retention; (10) Intentional Infliction of Emotional Distress; (11) Constructive Discharge / Wrongful Termination; and (12) Wrongful Termination in Violation of Public Policy.

Defendant filed a demurrer to the FAC with a motion to strike (the Demurrer), set for hearing on September 28, 2026. In the meantime, Plaintiff filed the Motion for leave to file a Second Amended Complaint. Defendant filed an Opposition.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), provides, in relevant part, “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” Code of Civil Procedure section 576 provides, “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.”

“This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) Where a party opposes amendment on the ground of delay, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (Id. at p. 1048.)

A motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).) A separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

Although courts apply a policy of “great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial,” that policy “should be applied only ‘[w]here no prejudice is shown to the adverse party,’” and “[a] different result is indicated ‘[w]here inexcusable delay and probable prejudice to the opposing party’ is shown.” (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487.) “[U]nwarranted delay justifies denial of leave to amend.” (Miles v. City of Los Angeles (2020) 56 Cal.App.5th 728, 739.) It “‘is well settled that a long deferred presentation of the proposed amendment without a showing of excuse for the delay is itself a significant factor to uphold the trial court’s denial of the amendment.’” (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 613.)

“Generally, leave to amend must be liberally granted [Citation.], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

ANALYSIS

I. Reply Papers

Plaintiff filed the Reply and her supporting declaration on September 11, 2026. Reply papers are due 5 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Because September 7, 2026 was a court holiday, the deadline for a September 16, 2026 hearing fell on September 9, 2026. Plaintiff therefore filed the Reply and the reply declaration 2 court days late.

Plaintiff also submits, with the reply declaration, evidentiary matter that the moving papers did not contain: her July 24 and July 27, 2026 letters, defense counsel’s August 11, 2026 recap email, out of office replies from Defendant’s counsel’s office, and a screenshot of the July 24, 2026 letter’s file properties. (Aba Reply Decl., ¶¶ 3-8.) Evidence offered for the first time on reply “should only be allowed in the exceptional case.” (Plenger v. Alza Corp. (1992) 11 Cal.App.4th 349, 362, fn. 8.) Considering evidence so offered “is not an abuse of discretion so long as the party opposing the motion . . . has notice and an opportunity to respond to the new material.” (Ibid.)

Here, the reply evidence responds to a charge that Defendant first made in its Opposition. The Court will afford Defendant an opportunity to address that evidence at the hearing. Accordingly, the Court exercises its discretion to consider the late-filed Reply and the reply declaration.

II. Plaintiff's Declaration

Defendant argues that the Court must deny the Motion because Plaintiff's supporting declaration attaches, as part of Exhibit 3, a meet and confer letter dated July 24, 2026 that neither of Defendant's counsel received. Defendant further argues that Plaintiff swore Exhibit 3 contains true and correct copies of the parties' correspondence. (Opp., at pp. 1:14-24, 4:9-23.)

Plaintiff replies that she drafted the letter on July 24, 2026 and did not attach it to the email transmitting her proposed stipulation and proposed pleading. (Reply, at pp. 3:4 - 4:8.)

Salamatian declares that neither she nor Waldron has seen or received the letter, and that Plaintiff did not include a copy of the transmitting email. (Salamatian Decl., ¶ 10.)

Plaintiff concedes that she did not attach the letter to the July 25, 2026 email. (Reply, at p. 3:5-11.) She maintains, however, that she sent the letter by email on July 24, 2026, that her July 27, 2026 reference to "my prior correspondence" pointed to it, and that Salamatian said she had both of Plaintiff's letters in front of her on August 11, 2026. (Aba Reply Decl., ¶¶ 3-5.) Plaintiff asks the Court to weigh those statements against Salamatian's declaration. (Reply, at pp. 9:15 - 10:2.)

The Court finds that Plaintiff inadvertently omitted the letter from the July 25, 2026 email.

In any event, Defendant cites no authority that a defective supporting declaration is a ground for denying leave to amend. The Court declines to deny the Motion on this ground.

III. Diligence and Prejudice

Plaintiff contends that Defendant will suffer no prejudice because the action remains at the pleading stage, no trial date has been set, no discovery

cutoff has passed, and Defendant has been aware of the facts underlying the proposed amendments since the FAC was filed. (Mot., at p. 6:1-8.)

Defendant argues that Plaintiff's own declaration establishes inexcusable delay, and that her declaration gives no reason why she did not seek the amendment earlier beyond her further review of a pleading built on facts she already had. Defendant further argues that successive and avoidable pleading challenges will prejudice it. (Opp., at pp. 4:26 - 5:28, 11:6-22.)

Plaintiff replies that 5 days separate Defendant's July 23, 2026 meet and confer letter from the filing of the Motion, and that one month separates the FAC from the Motion. (Reply, at pp. 6:13 - 7:7.)

Plaintiff submits the proposed Second Amended Complaint, serially numbered, and a redline comparison against the FAC. (Aba Decl., ¶ 2, Exs. 1, 2.) Defendant challenges the supporting declaration under rule 3.1324(b)(4) alone. (Opp., at pp. 5:21 - 6:2.) That subdivision requires the declaration to specify the reasons the request was not made earlier. Plaintiff's declaration supplies them. She declares that she filed the FAC within the 30 days the May 28, 2026 order allowed, that on further review of her pleading and the underlying record, including Defendant's meet and confer correspondence, she identified additional clarifications and factual specificity, and that she brought the Motion promptly thereafter. (Aba Decl., ¶ 8.)

Plaintiff measures the delay from the FAC and from Defendant's meet and confer letter. (Reply, at pp. 6:13 - 7:7.) The cases measure that interval from the moving party's knowledge of the facts. Plaintiff declares that she learned of the asserted conflict of interest around November and December 2024, and that during her employment she knew of the comparator that she now names. (Aba Decl., ¶ 7, subds. I, II.) The interval measured from that knowledge is far longer than the intervals Plaintiff identifies.

However, Leader's rule reaches "a long deferred presentation of the proposed amendment without a showing of excuse for the delay." (Leader, *supra*, 89 Cal.App.4th at p. 613.) Plaintiff has made that showing in her declaration. Defendant does not contend that the reasons she gives are untrue. A "long unexcused delay is sufficient to uphold a trial judge's decision to deny the opportunity to amend pleadings, particularly where the new amendment would interject a new issue which requires further discovery." (Green v. Rancho Santa Margarita Mortgage Co. (1994) 28 Cal.App.4th 686, 692.) In

Miles, by contrast, the plaintiffs waited four and a half years to assert a new claim, and did so only after the trial court indicated its intent to grant summary judgment. (Miles, supra, 56 Cal.App.5th at p. 739.) This delay is excused.

Defendant has not demonstrated prejudice. First, no trial date has been set and no discovery cutoff has passed. (Aba Decl., ¶ 10.) Second, the action remains at the pleading stage, because Defendant has not filed a responsive pleading to the FAC. (Mot., at p. 6:2-3.) Third, Defendant identifies no evidence that would be lost, no continuance that the amendment would require, and no additional discovery it would have to take. (Opp., at p. 11:6-22.)

Defendant does identify one burden. It filed the Demurrer to the FAC on August 28, 2026, and the amendment moots it. (Opp., at p. 11:9-21.) Under Solit, prejudice takes three forms: delay in trial, loss of critical evidence, and added costs of preparation. (Solit, supra, 68 Cal.App.4th at p. 1448.) Work spent on a mooted pleading challenge is a cost of preparation. However, Defendant's own papers show how little of that work the amendment wastes. Defendant maintains that the proposed pleading does not cure the defects the Demurrer identifies, and that it would demur again "based on the abovementioned defects that already exist in this proposed SAC." (Opp., at pp. 1:10-12, 6:9-11, 11:19-21.) On that account, the Demurrer's research and argument carry forward to a demurrer to the Second Amended Complaint. Defendant also deferred the merits of the five added causes of action pending the ruling on this Motion, so it has not yet done that work. (Dem., at p. 6, fn. 1.) Defendant identifies no trial date, no discovery cutoff, and no evidence that the amendment places at risk.

IV. Validity of the Proposed Amendments

The Court may deny leave where the proposed pleading is insufficient as a matter of law. However, that rule "would find its most appropriate application . . . in cases in which the insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment." (California Casualty Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280-281, disapproved on another ground in Kransco v. American

Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390, 407, fn. 11.)

Even where the proposed legal theory is a novel one, "the preferable practice would be to permit the amendment and allow the parties to test its legal

sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (Kittredge, supra, 213 Cal.App.3d at p. 1048, quoting California Casualty, supra, 173 Cal.App.3d at p. 281.)

Accordingly, the Court exercises its discretion to permit the amendment and to allow the parties to test the sufficiency of the Second Amended Complaint on a demurrer or motion to strike directed to it.

V. Scope of Leave

Plaintiff contends that the ruling on the Motion resolves any question whether particular causes of action fall within the scope of the May 28, 2026 order, because the Motion seeks leave to file the proposed pleading in its entirety. (Mot., at p. 4:7-18; Aba Decl., ¶ 5.)

Defendant argues that the five causes of action added in the FAC exceeded the scope of that order, and that Plaintiff should not be rewarded for bypassing the leave the Court granted. (Opp., at pp. 10:23 - 11:5; Salamatian Decl., ¶¶ 3, 4, Exs. B, C.)

Here, the Court declines to deny leave as a response to the FAC’s asserted overreach. Granting leave extinguishes an objection Defendant has preserved. Defendant filed the Demurrer pressing the out-of-scope objection against the Seventh, Eighth, Ninth, Tenth, and Twelfth Causes of Action, and filed it to avoid waiving that objection. (Dem., at p. 6:17-18; Opp., at p. 10:25-28.)

The Court grants leave for reasons independent of the overreach. Sustaining the Demurrer on the scope ground would leave Plaintiff free to move for leave to plead the same causes of action. That is what this Motion seeks. Denying this Motion would therefore add a round of pleading motions without changing which causes of action Plaintiff may plead. The conduct that Defendant describes is a reason to require Plaintiff to obtain the Court’s leave, and not a reason to withhold it from an amendment that is otherwise proper.

The scope question is academic once Plaintiff files the Second Amended Complaint. “It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.” (Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884.) Upon that filing, the FAC ceases to be the operative pleading. Therefore, the scope of the May

28, 2026 order will no longer matter to any pleading before the Court.

Accordingly, the Court grants leave to file the Second Amended Complaint in its entirety. Plaintiff is ordered to file and serve the Second Amended Complaint, in the form attached as Exhibit 1 to her declaration in support of the Motion, within 5 court days of this order. Defendant is ordered to respond to the Second Amended Complaint within 30 days of service.

If Defendant decides, after meeting and conferring with Plaintiff, to file a Demurrer to the SAC, Plaintiff shall respond to the Demurrer only by filing an opposition to the Demurrer. Plaintiff shall not do what she did previously, that is, file a motion for leave to file an amended pleading either after meeting and conferring with Defendant regarding a potential demurrer or in response to a demurrer. The Demurrer, set for hearing on September 28, 2026, is taken off calendar as moot.

CONCLUSION

The Motion for Leave to File Second Amended Complaint is granted.